

Multiple Choice (10 marks)

1. Which of the examples below has not been developed by the European Court of Human Rights as a situation where the state has a positive obligation to protect?
 - (a) When the applicant is in the custody of the state
 - (b) Where the state must investigate claims against it
 - (c) The development of a legal framework to protect those within the state
 - (d) To provide housing for all those homeless within a state
2. Which of the following arguments against the 'fair play' argument in support of a duty to obey the law is the most persuasive?
 - (a) Fairness is a relative term.
 - (b) The legal system is, in fact, unfair.
 - (c) It sets a bad example.
 - (d) The law is irrational and ambiguous.
3. Which of the following quotations best describes the central thesis of difference feminism?
 - (a) There are fundamental differences between individual women.'
 - (b) Men and women have different conceptions of the feminist project.'
 - (c) Women look to context, whereas men appeal to neutral, abstract notions of justice.'
 - (d) Men are unable to comprehend their differences from women.'
4. What does Dworkin mean by the 'semantic sting'?
 - (a) The language of the law is generally unclear.
 - (b) Lawyers' arguments usually concern language.
 - (c) Judges are prey to linguistic misunderstanding.
 - (d) The rule of recognition cannot fully account for legal validity.
5. Who says that "Social Contract is not a historical fact but a hypothetical construction of reason"
 - (a) Hobbes
 - (b) Locke
 - (c) Thomas Aquinas
 - (d) Rousseau

True / False (10 marks)

Answer True or False

6. True or False: The Critical Legal Studies School prioritizes market efficiency as the central aim of legal decision-making.
7. True or False: Hobbes argued that natural law is rooted in man's inherent social nature and his need for societal living.
8. True or False: Monism posits that international law is superior to domestic laws.
9. True or False: A consequentialist justification of punishment emphasizes the moral imperative to match punishment with the severity of the crime.
10. True or False: The rise of Fascism in the early 20 th century played a crucial role in the revival of natural law during that period.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Tom Regan's concept of 'sentimental anthropomorphism' and analyze how it underpins the argument for animal rights, particularly regarding their inherent worth and autonomy.
12. Discuss how the postmodernist project critiques the Kantian focus on individual rights, equality, and justice within the context of constitutional law.

End of Paper